

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 850300053

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF JOHN DEL SIGNORE, MA, LPC, LICENSE NO. 2518,

RESPONDENT.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and John Del Signore, MA, LPC ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this stipulation.
2. Respondent was licensed as a professional counselor in the State of Colorado at all relevant times herein and is now so licensed.
3. On or about July 23, 2003, the Board received a complaint that alleged Respondent practiced below generally accepted standards of practice and misconduct.
4. Following investigation of the complaint, the board determined that reasonable grounds existed to refer this matter for disciplinary proceedings.
5. The Board could establish a prima facie case of violations of the Colorado Mental Health Act and Respondent could introduce evidence to refute the Board's case. The parties wish to save the time and expense of litigating this matter and therefore agree to this Stipulation. The Board asserts that the Respondent committed the following violations:
 - a. Respondent entered into a professional and therapeutic relationship as part of his practice of professional counseling to provide the client with treatment as defined in 12-43-601, C.R.S.

- b. During the course of the therapeutic relationship with a client, Respondent acted in a manner that did not meet the generally accepted standards of practice in violation of 12-43-222(1)(g);
- c. During the course of the therapeutic relationship Respondent maintained a relationship with the client that was likely to impair his professional judgment or increase the likelihood of client exploitation in violation of 12-43-222(1)(i);

6. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

7. Respondent hereby surrenders his license and the right to practice as a Licensed Professional counselor in the State of Colorado and requests the Board to accept said relinquishments. Such relinquishment shall have full force and effect as a revocation ordered by the Board. Respondent tenders the license simultaneously with execution of this document. Following relinquishment of the license, Respondent shall not perform any act requiring a license to practice.

8. Respondent understands that if Respondent applies for licensure at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of the application.

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S. (2004) concerning the facts admitted in paragraph 3 above, and

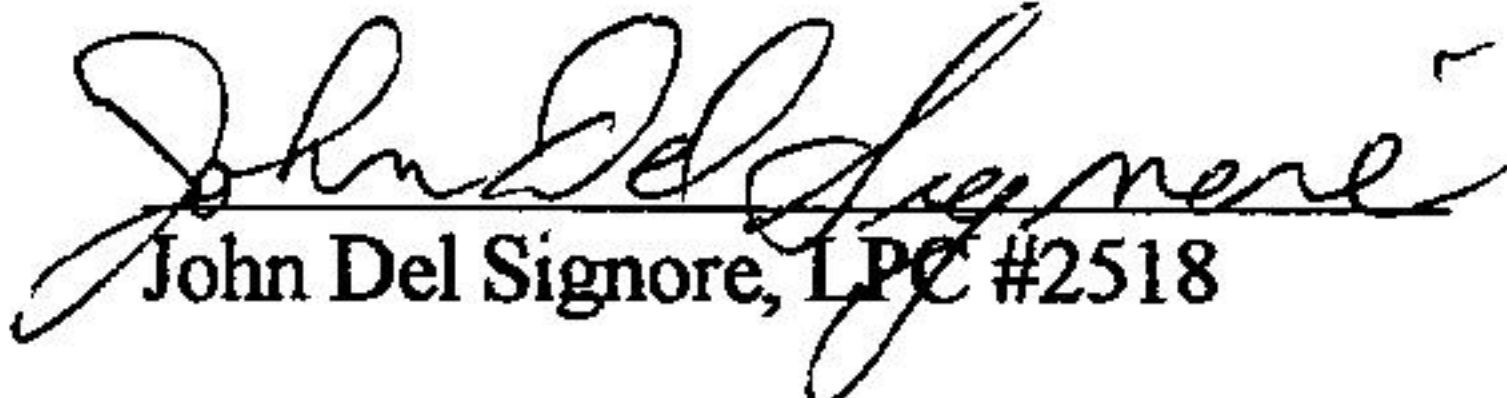
hereby waives those rights and requests that this Stipulation and Order be accepted by the Board with the same force and effect as an Order entered as a result of a formal disciplinary hearing.

10. Respondent enters this Stipulation and Order voluntarily and without coercion and after an opportunity to consult with counsel and with a full understanding of the legal consequences of this Stipulation and Order and the right to formal hearing on all matters herein.

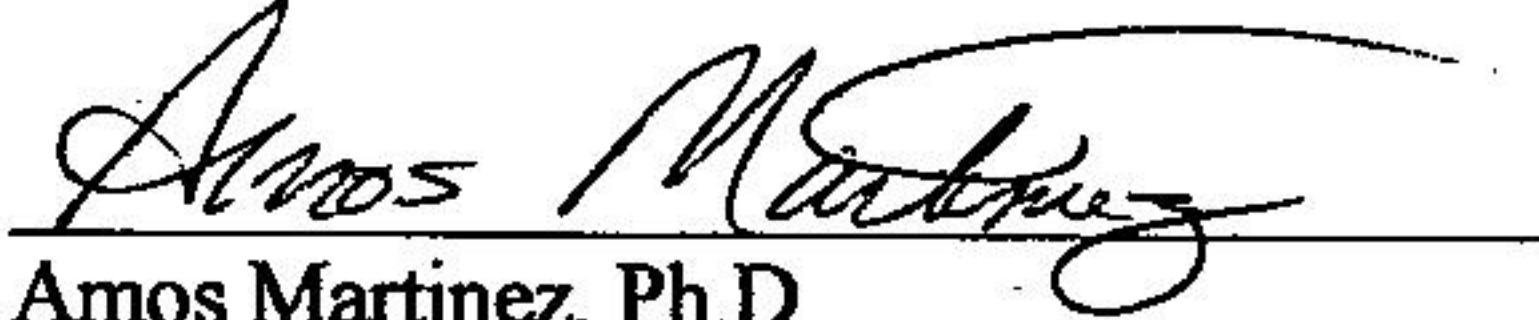
11. This Stipulation and Order shall become an Order of the Board when accepted by the Board and signed by an authorized Board representative.

42. This Stipulation and Order is a public record in the custody of the Board at all times.

RESPONDENT

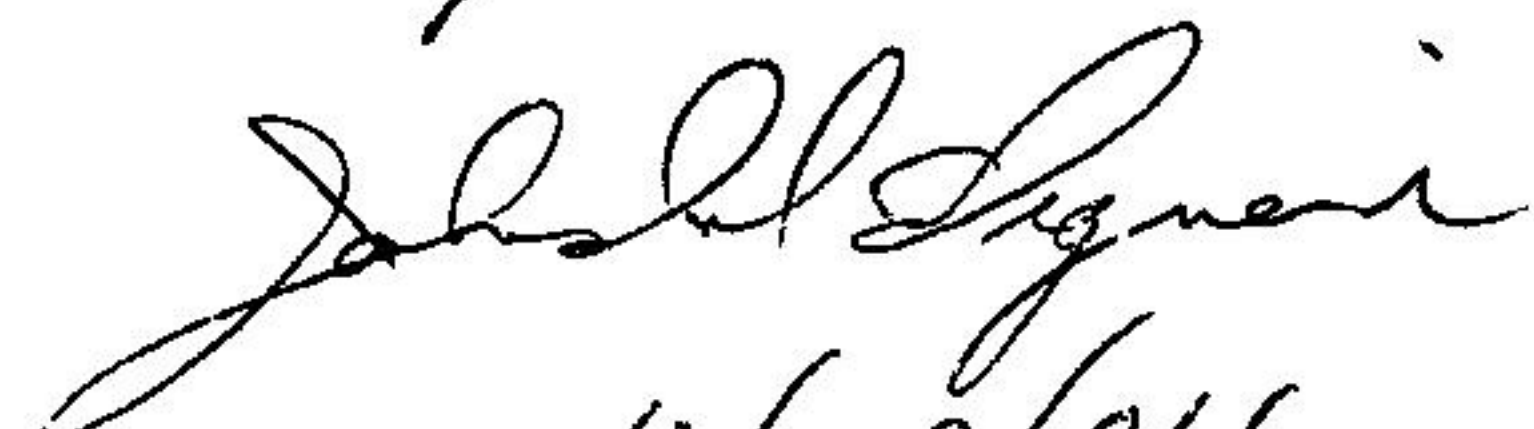

John Del Signore, LPC #2518

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL EXAMINERS**


Amos Martinez, Ph.D.
Program Director

Effective Date: This 28th day of
October 2004.

*My license expired last year and I have
not practiced in the last two years.*


10/28/04